3639-A

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO GIVE PERPETUAL LEASE ON CERTAIN REAL ESTATE.

By virtue of the authority vested in me by "An Act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, and prior fiscal years, on account of war expenses, and for other purposes", approved March 28, 1918, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to execute in due form of law a perpetual lease, together with option of purchase, for certain real estate now being held and administered by him as such custodian, and heretofore, upon requirement by him conveyed, transferred, assigned and delivered to him by virtue of his requirements, and acts of seizure as the property in certain undivided interests therein of certain parties, whom he did after investigation determine to be enemies within the purview of said Act as amended, and not holding licenses granted by the President, the said parties and their respective interests in the real estate hereinafter described being as follows, Jane Georgiana Margaret Sophie Mandrup de Lynar, one equal undivided one-thirtieth part, the Act of Seizure of her said interest being under report No. 46445, Trust No. E–22134 and having been filed for record in the Recorder's Office, of Franklin County, Ohio, on the fifth day of November, 1919, and recorded on the 17th day of November, 1919, in Deed Book 653, page 632, in said Recorder's Office; George Mandrup de Lynar, on equal undivided on-thirtieth part, the Act of Seizure of his said interest being under report No. 46446, Trust No. E–22133 and having been filed for record in the Recorder's Office, of Franklin County, Ohio, on the 5th day of November, 1919, and recorded on the 17th day of November, 1919, in Deed Book 653, page 633, in said Recorder's Office; Ernst George Herman Rochus Mandrup Count de Lynar one equal undivided one-thirtieth part, the Act of Seizure of his said interest being under report No. 46443, Trust No. E–22135 and having been filed for record in the Recorder's Office, of Franklin County, Ohio, on the 5th day of November, 1919, and recorded on the 18th day of November, 1919, in Deed Book 653, page 635, in said Recorder's office; Amelia, Princess de Lynar, the undivided one-tenth part, the Act of Seizure of her said interest being under report No. 46444, Trust No. E–22136 and having been filed for record in the Recorder's Office, of Franklin County, Ohio, on the 5th day of November, 1919, and recorded on the day of November, 1919, in Deed Book 653, page 632, in said Recorder's Office; the said real estate in which the said respective undivided interests are held being described as follows, to-wit:

Situate in the County of Franklin, the State of Ohio, and in the City of Columbus, and

BEING twelve and one-half (12½) feet off the north side of Inlot Two hundred seventy-one (271) in the City of Columbus, Ohio, and twenty-five (25) feet off the south side of Inlot Two hundred seventy-two (272) in the City of Columbus, Ohio, as the said Inlots Two hundred seventy-one (271) and Two hundred seventy-two (272) in the City of Columbus, Ohio, are numbered and delineated upon the record plat thereof of record in Deed Book "F", page 232, Recorder's Office, Franklin County, Ohio.

The said perpetual lease shall be for the term of ninety-nine (99) years renewable forever; shall require a rental of five (5) per cent on a valuation of three hundred thousand (300,000.00) dollars for the entire full interest in said real estate; shall contain an option of purchase upon the basis of a valuation of three hundred thousand ($300,000.00) dollars for the entire interest in said real estate, or sixty thousand ($60,000.00) dollars for the share and interest held by the Alien Property Custodian; shall commence on April 1, 1925; shall require the payment as a bonus for said lease of the sum of three thousand, five hundred ($3,500.00) dollars per year payable pro rata to the respective owners of the full entire ownership in said property for the period from October 1, 1920, to April 1, 1925, and shall contain such other provisions as said custodian shall determine and shall be executed by said custodian along with such of the other leases by other owners of said premises as shall join in the same, said lease to be made and executed to The Swan Company, a corporation organized under the laws of Ohio.

My reasons for the foregoing determination, order, rule, and regulation, are:

(a) An offer to make such a lease has been made and is now pending, and if accepted, must be accepted at once;

(b) The said real estate above described adjoins a similar tract of thirty-seven and one-half (37½) feet to the north thereof, which two tracts constitute a single tract of seventy-five (75) feet which is now improved and has for many years been improved with a substantial building which constitutes one structure on said entire seventy-five (75) feet, and said The Swan Company is the owner of the said similar tract to the north and in position to lease said premises in their present condition, whereas lease to another party would require remodeling of buildings.

(c) The said real estate has always been profitably disposed of by long time leases, the present lease expiring March 31, 1925, and it being necessary in order to arrange for a new lease upon said property that the same be made in ample time to complete full arrangements therefor and full arrangements with all of the joint owners of said property, who are numerous and resident in the United States, England and France.

(d) The proposal which is now made by the Swan Company has been approved and accepted by all of the owners of said property with the exception of those interests held by said custodian.

(e) That said lease is an advantageous one, in that it makes arrangements in ample time for the leasing of said property prior to the expiration of the present lease, in that it increases the income from said property after April 1, 1925, more than four-fold and that it at once doubles the income from said property, said increase beginning as of October 1, 1920.

WARREN G HARDING

THE WHITE HOUSE,
February 21, 1922.